

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Kasra Sadr, \$300 for Nima Heydari, and \$135 per hour by Liz Peralta are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff's motion is granted in the reduced amount of \$5,302.00 for attorney's fees and costs in the amount of \$315.00 for a total amount of \$5,617.00.

2. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

The motion for preliminary injunction is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0097944 DAY, BLISS v. MAIA, TAYLOR

Defendant's Demurrer to Complaint

Defendant demurs to plaintiff's verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action and is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

Code of Civil Procedure section 1161, subdivision (1) provides

When the tenant continues in possession, in person or by subtenant, of the property, or any part thereof, after the expiration of the term for which it is let to the tenant; provided the expiration is of a nondefault nature however brought about without the permission of the landlord . . . has been lawfully terminated or the time fixed for occupancy by the agreement between the parties has expired; but nothing in this subdivision shall be construed as preventing the removal of the occupant in any other lawful manner; but in

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case of a tenancy at will, it shall first be terminated by notice, as prescribed in the Civil Code.

(Code Civ. Proc., § 1161, subd. (1).)

Here, when taking the allegations in the complaint as true, plaintiff alleges facts sufficient to state a cause of action for unlawful detainer based on the expiration of the lease term and the notice of non-renewal/notice to vacate after the expiration of the lease term. Nor is the demurrer uncertain. As such, the demurrer is overruled.

Defendant shall file and serve an answer or other responsive pleading 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

4. S-CV-0053910 SPENCER, JEFFREY v. HYUNDAI MOTOR AMERICA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiffs' objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries